

LAWRENCE LAWYER, ESQ.
Nevada Bar No. 00000
NEON LAW
2400 Confection Way, Suite 400
Las Vegas, Nevada 89101
Telephone: (702) 555-0134
lawrence@neonlaw.example
Attorneys for Plaintiff Dermot A. Cruller

**DISTRICT COURT
CLARK COUNTY, NEVADA**

DERMOT A. CRULLER, an individual, Plaintiff, vs. WENDELL PRINE, an individual; and DOES I through X, inclusive, Defendants.	Case No.: A-26-874219-C Dept. No.: XVII Hearing Requested
--	--

**PLAINTIFF’S MOTION FOR PARTIAL SUMMARY JUDGMENT ON DEFENDANT’S
THIRD AFFIRMATIVE DEFENSE (STATUTE OF LIMITATIONS)**

Plaintiff DERMOT A. CRULLER, by and through his counsel of record, Lawrence Lawyer, Esq. of NEON LAW, moves this Court under Rule 56(a) of the Nevada Rules of Civil Procedure for partial summary judgment against Defendant WENDELL PRINE on the Third Affirmative

1 Defense pleaded in Defendant's Answer to the First Amended Complaint, filed 10 August 2026,
2 which asserts that Count II is barred by the statute of limitations.

3 This Motion is made and based upon the pleadings and papers on file herein, the following
4 Memorandum of Points and Authorities, and any argument this Court may entertain at the
5 hearing of this Motion.

6 7 **I. INTRODUCTION**

8 This is a narrow motion, and it is narrow on purpose. Count II seeks rescission of an
9 instrument on the ground of fraud. Nevada gives a plaintiff three years to bring such a claim,
10 measured from his discovery of the facts constituting the fraud. Count II was filed on 3 August
11 2026. The latest event Defendant has ever identified as a possible starting point for that period is
12 1 April 2025, and the three years running from even that date will not expire until 1 April 2028.

13 The limitations defense therefore fails on every accrual date the record can support, which
14 means this Court does not have to decide which one is correct in order to dispose of the defense.
15 That is the whole of the relief sought.

16 Plaintiff does not move on Defendant's waiver and ratification defense, and Part IV.C
17 explains why: that defense turns on when Plaintiff learned of the soul term, which is a fact this
18 record genuinely disputes and which a jury will have to resolve. Rule 56 is not the place for it,
19 and Plaintiff does not pretend otherwise.

20 21 **II. STATEMENT OF UNDISPUTED MATERIAL FACTS**

22 1. On 1 April 2025, Defendant offered Plaintiff a doughnut over the hedge

23 dividing their properties. Defendant has sworn that he described the doughnut as "neat,"
24 that he offered it "the way I would offer anybody a doughnut," and that after "a year and some
25 months" he cannot swear to every other word of the exchange. (Def.'s Resp. to Pl.'s First Set of
26 Interrogs., No. 1, served 27 July 2026.)

27 2. Plaintiff consumed part of the doughnut on 1 April 2025 and the remainder on

28 14 April 2026. (First Am. Compl. ¶¶ 6, 11.)

1 3. Plaintiff first learned of the term purporting to convey his soul on 14 April
2 2026. (First Am. Compl. ¶ 13; Aff. of Odile Cruller, sworn 11 June 2026, ¶¶ 4–7.)

3 4. Defendant has sworn that the date on which he first contended that Plaintiff’s
4 soul had been conveyed to him was 14 April 2026. (Def.’s Resp. to Pl.’s First Set of
5 Interrogs., No. 4.)

6 5. Plaintiff served written notice of rescission on Defendant on 2 May 2026,
7 seventeen days after 14 April 2026. (Notice of Rescission, served 2 May 2026.)

8 6. Count II was added to this action by amendment on 3 August 2026. (First Am.
9 Compl., filed 3 Aug. 2026.)

10 7. Defendant’s Answer to the First Amended Complaint, filed 10 August 2026,
11 pleads as its Third Affirmative Defense that Count II “is barred by the applicable statute
12 of limitations.”

13 None of facts 1 through 7 is disputed for the purposes of this Motion. Facts 3 and 4 are
14 the only ones Defendant has any interest in disputing, and as Part IV.A shows, the outcome of
15 this Motion does not depend on either of them.

16 17 **III. LEGAL STANDARD**

18 NRCP 56(a) permits a party to move for summary judgment “identifying each claim or
19 defense—or the part of each claim or defense—on which summary judgment is sought,” and
20 provides that “[t]he court shall grant summary judgment if the movant shows that there is no
21 genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law.”
22 A motion may be filed “at any time until 30 days after the close of all discovery.” NRCP 56(b).
23 A party asserting that a fact cannot be genuinely disputed must support the assertion by “citing
24 to particular parts of materials in the record, including depositions, documents, electronically
25 stored information, affidavits or declarations, stipulations ... admissions, interrogatory answers,
26 or other materials.” NRCP 56(c)(1)(A).

27 Our Supreme Court set the governing standard in *Wood v. Safeway, Inc.*, 121 Nev. 724,
28 121 P.3d 1026 (2005). “Summary judgment is appropriate under NRCP 56 when the pleadings,

1 depositions, answers to interrogatories, admissions, and affidavits, if any, that are properly before
2 the court demonstrate that no genuine issue of material fact exists, and the moving party is
3 entitled to judgment as a matter of law.” *Id.* Two further sentences from *Wood* govern this Motion
4 directly. First: “The substantive law controls which factual disputes are material and will preclude
5 summary judgment; other factual disputes are irrelevant.” *Id.* Second: “A factual dispute is genuine
6 when the evidence is such that a rational trier of fact could return a verdict for the nonmoving
7 party.” *Id.*

8 The first of those sentences is why this Motion can be granted while the parties remain
9 in genuine disagreement about what Plaintiff knew and when. A dispute is only fatal to a motion
10 if the substantive law makes it material to the issue actually moved on. The substantive law here
11 is a three-year period, and no version of the disputed fact moves the filing date outside it.

12 13 **IV. ARGUMENT**

14 15 **A. The three-year period had not run on any accrual date this record supports.**

16 An action for relief on the ground of fraud must be commenced within three years, and
17 the cause of action “shall be deemed to accrue upon the discovery by the aggrieved party of the
18 facts constituting the fraud or mistake.” NRS 11.190(3)(d).

19 Count II was filed on 3 August 2026. There are only two dates in this record that any party
20 has ever proposed as the start of the limitations period, and the claim is timely under both:

21 *Discovery — 14 April 2026.* This is the accrual date the statute actually prescribes
22 and the one the record supports. Three years from 14 April 2026 expires on 14 April 2029. Count
23 II was filed two years and eight months early.

24 *The date of the offer — 1 April 2025.* This is the earliest date any theory could reach,
25 and it is not the statutory trigger, because on 1 April 2025 Plaintiff had discovered nothing. Even
26 so: three years from 1 April 2025 expires on 1 April 2028. Count II was filed one year and eight
27 months early.

1 Because the claim is timely on both dates, this Court can dispose of the Third Affirmative
2 Defense without deciding between them. Defendant is of course free to argue for the earlier date;
3 the argument buys him nothing, because the interval he needs is three years and the longest
4 interval available to him on this record is one year and four months.

5 Defendant has identified no third date. If he means to propose one, NRCP 56(c)(1) requires
6 him to support it by citation to particular parts of the record, and any date he cites will have to
7 be one that precedes 3 August 2023 to do him any good — which is to say, a date eight months
8 before the doughnut existed.

9
10 **B. Defendant’s own sworn interrogatory answer fixes the latest accrual date well**
11 **inside the period.**

12 Plaintiff does not need Defendant’s admission to win this Motion, but Defendant has made
13 one, and it disposes of any residual argument about timing. Asked to state the date on which he
14 first contended that Plaintiff’s soul had been conveyed to him, Defendant answered under oath:
15 “14 April 2026, in my own kitchen, to my wife Verity.” (Def.’s Resp. to Pl.’s First Set of Interrogs.,
16 No. 4.)

17 An interrogatory answer is competent material on a Rule 56 motion. NRCP 56(c)(1)(A).
18 Defendant has therefore sworn that the conveyance he now relies upon was not a subject of his
19 own contention until 14 April 2026 — the same day Plaintiff says he learned of it. On Defendant’s
20 account and on Plaintiff’s alike, nothing that could start a limitations clock happened before that
21 date, and 3 August 2026 is less than four months after it.

22
23 **C. Plaintiff does not move on ratification, because that defense turns on a genuinely**
24 **disputed fact.**

25 Defendant’s Fourth Affirmative Defense alleges that Plaintiff affirmed the instrument by
26 consuming the remainder of the doughnut. Plaintiff does not seek summary judgment on that
27 defense and does not ask this Court to reach it.

The reason is the standard itself. Waiver of the right to rescind requires knowledge: “knowledge of the material facts constituting the fraud must appear if the payments are to be held to constitute waiver or election.” *Friendly Irishman, Inc. v. Ronnow*, 74 Nev. 316, 330 P.2d 497 (1958). Whether Plaintiff had that knowledge before 14 April 2026 is contested, it is supported on both sides by more than speculation, and under *Wood* it is precisely the kind of dispute a rational trier of fact must resolve. *Wood*, 121 Nev. 724, 121 P.3d 1026.

Plaintiff identifies the boundary expressly so that the record shows it was drawn deliberately. NRCP 56(a) contemplates a motion aimed at part of a defense, and granting this one resolves the limitations question for good while leaving the ratification question exactly where it belongs, which is with the jury.

V. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that this Court grant partial summary judgment in his favor on Defendant's Third Affirmative Defense, and enter an order that Count II of the First Amended Complaint is not barred by NRS 11.190(3)(d).

DATED this 18th day of August, 2026.

NEON LAW

LAWRENCE LAWYER, ESQ.

Nevada Bar No. 00000

2400 Confection Way, Suite 400

Las Vegas, Nevada 89101

Attorneys for Plaintiff

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 10
- 11
- 12
- 13
- 14
- 15
- 16
- 17
- 18
- 19
- 20
- 21
- 22
- 23
- 24
- 25
- 26
- 27
- 28

HOLLIS STIPE, ESQ.
Nevada Bar No. 00000
MARROW & STIPE LLP
88 Ledger Street, Suite 1200
Las Vegas, Nevada 89101
Attorneys for Defendant Wendell Prine

15 _____

16 An employee of NEON LAW